

Common Types of Medical Malpractice Cases

Medical malpractice is a term that describes a situation in which a healthcare provider causes harm by failing to meet their accepted standard of care.

In this blog post, [Freeman & Patel LLC](#) explains the common types of medical malpractice, highlights well-known lawsuit cases, and outlines practical steps to help you determine if you may have a valid claim.

What is Medical Malpractice?

Medical malpractice occurs when a doctor, nurse, or medical facility delivers care that falls below the accepted professional standard. The law defines this standard as the level of skill and judgment another competent provider would use under the same circumstances. When a provider's actions or omissions breach that standard and directly cause harm, malpractice exists.

Courts require proof through records and expert testimony, which distinguishes malpractice from ordinary treatment complications or poor outcomes.

Different Types of Medical Negligence

The following medical malpractice examples reveal how errors in different areas of medicine create preventable harm:

- Diagnostic errors include missed diagnoses, delayed diagnoses, or diagnosing the wrong condition.
- Surgical mistakes include leaving tools inside the body or operating on the wrong site.
- Medication errors include giving the wrong drug, the wrong dose, or mixing unsafe prescriptions.
- Birth-related negligence sometimes includes poor monitoring during labor or unsafe delivery techniques that injure the mother or the child.
- Nursing and testing errors include misreading lab results or failing to keep track of a patient's condition.

If you experienced any of the medical malpractice examples described above, reach out to Freeman & Patel LLC to schedule a consultation.

Historic Malpractice Lawsuit Cases

[Medical malpractice](#) lawsuit cases show how a single medical error can create lifelong consequences. In *Navarro v. Austin* (2006), Allan Navarro arrived at an emergency room with stroke symptoms. They diagnosed him with sinusitis and sent him home with painkillers. The

following day, he came back in with brain swelling and went into emergency surgery. The injury left him confined to a wheelchair with permanent brain damage. A jury awarded \$217 million in damages.

In 1995, Willie King underwent an amputation where the surgical team removed the wrong leg after repeated preparation errors. The hospital and surgeon settled for \$1.15 million.

Determining if You Have a Case for Medical Malpractice

The following points explain what patients must establish before pursuing medical malpractice claims:

- Doctor-patient relationships confirm that the provider owed a duty of care.
- Breach of duty means the provider's actions fell below accepted medical standards.
- Direct harm links the provider's negligence to the patient's injury or illness.
- Supporting evidence includes records, witness statements, and treatment timelines.
- Expert testimony often explains how common types of medical malpractice create preventable harm.

Think you have a case for medical malpractice? Contact Freeman & Patel to schedule a consultation.

Schedule a Medical Malpractice Consultation With Freeman & Patel LLC

Medical malpractice cases involve detailed evidence and strict filing deadlines. Freeman & Patel LLC helps patients review documentation and explore legal options. To learn more about [suing a hospital](#) and protecting your rights, read our other blog post or contact our office to schedule a consultation. Call Freeman & Patel at 732-494-7900 today.